

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, SEPTEMBER 23, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ARKABAYEV v. TANG
Case No. CU26-03769**

Emergency Motion

TENTATIVE RULING:

Plaintiff's "emergency motion" is denied. Plaintiff has failed to demonstrate proper and timely service of the motion papers on Defendant. Motion papers must be served at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005(b).) Proof of service had to be filed no later than five court days prior to the hearing. (Cal. Rules of Court, rule 3.1300(c).)

Additionally, the motion is not accompanied by a memorandum of points and authorities containing "a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rule 3.1113(b).) The court construes the absence of the memorandum as an admission that the motion is not meritorious. (Cal. Rules of Court, rule 3.1113(a).)

**LISA PATTERSON v. CITY OF FAIRFIELD, et al.
Case No. CU26-03990**

**CITY OF FAIRFIELD, CITY OF VACAVILLE, and FAIRFIELD HOUSING
AUTHORITY's Demurrer**

TENTATIVE RULING:

Defendants CITY OF FAIRFIELD, CITY OF VACAVILLE, and FAIRFIELD HOUSING AUTHORITY (“Demurring Defendants”) demur to the causes of action against them in Plaintiff LISA PATTERSON’s first amended complaint (“1AC”), being those for premises liability, failure to perform mandatory duty, negligence, violation of 42 U.S.C. § 1983, violation of the Americans with Disabilities Act, and intentional infliction of emotional distress.

Summarized as relevant, the 1AC alleges that Plaintiff complained to CITY OF FAIRFIELD and CITY OF VACAVILLE that she was being stalked, harassed, and targeted for human trafficking. Plaintiff complained to FAIRFIELD HOUSING AUTHORITY that a convicted felon was illegally residing in subsidized housing. Demurring Defendants did not act on Plaintiff’s complaints.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (Id. at 1098–1099; Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247.)

Government Tort Claims Act. Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages against public entities generally must be presented to the entity within six months of accrual of the injury. (A.M. v. Ventura Unified School District (2016) 3 Cal.App.5th 1252, 1257.) A written administrative claim for injury to the person, personal property, or crops must be presented within six months of the accrual of the cause of action. (Gov. Code § 911.2.) All other claims must be presented within one year. (Ibid.) Failure to timely file a claim that must be filed within six months can be excused with a written application to the public entity for leave to file late. (Gov. Code § 911.4.) Absent an applicable exception, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1239.)

Plaintiff’s 1AC alleges at paragraph 4 that she has complied with applicable claims statutes but the complaint lacks appropriate factual allegations supporting that statement. She does not allege dates of claim presentation or rejection. The first page of Exhibit F to the 1AC (technically found with Plaintiff’s separately filed declaration) is part of a claim form presented to CITY OF FAIRFIELD on April 21, 2026, asserting that CITY OF FAIRFIELD employees trafficked Plaintiff and her family. There is no showing

that the claim was ever rejected. The next page of Exhibit F is the inverse: a rejection letter from CITY OF VACAVILLE dated August 21, 2025 and rejecting a claim presented July 17, 2025. This makes no showing that Plaintiff described her claims to CITY OF VACAVILLE in a timely filed form. There is nothing stated in or attached to the 1AC showing a claim presentation to FAIRFIELD HOUSING AUTHORITY in any way. Failure to demonstrate compliance with claims presentation requirements is an independent reason to sustain the instant demurrer.

Sufficiency of Pleading. The 1AC also fails to state facts sufficiently supporting any of its causes of action against Demurring Defendants. Public entities are not directly liable for common law torts. (Gov. Code, § 815.) They can be liable for common law torts committed by their employees in the scope of employment, but Plaintiff alleges no facts stating a tort committed by any employee of any of Demurring Defendants. (Gov. Code, § 815.2.) The named individuals who allegedly stalked her, coordinated stalking campaigns against her, or illegally resided in subsidized housing are not Demurring Defendants' employees. It is not clear how employees of Demurring Defendants ever did any harm to Plaintiff. Plaintiff's only allegations vis-à-vis CITY OF FAIRFIELD and CITY OF VACAVILLE are that she complained to them about being stalked and robbed. Regarding FAIRFIELD HOUSING AUTHORITY the 1AC only states that Plaintiff told it a felon was illegally residing in an apartment. None of the entities or their employees did anything to harm Plaintiff. They did not legally harm her by inaction or omission, either, because Plaintiff never identifies a particular mandatory duty any of them were to perform.

Regarding Plaintiff's ADA claim in particular, she asserts that she is disabled but never specifies how or in what way Demurring Defendants denied her program benefits or otherwise discriminated against her on the basis of her disability. (Weinreich v. L.A. County Metro. Transp. Authority (9th Cir. 1997) 114 F.3d 976, 978 [elements of ADA claim].) Plaintiff's intentional infliction of emotional distress claim is totally devoid of facts showing intentional, outrageous conduct by Demurring Defendants or their particular employees, done with intent to distress Plaintiff or reckless disregard of the probability of causing her distress, and that did in fact cause her to suffer severe emotional distress. (So v. Shin (2013) 212 Cal.App.4th 652, 671 [elements of IIED claim].)

Failure to state any of the asserted causes of action is an independent reason to sustain the instant demurrer.

Leave to Amend. Leave to amend should be allowed when a defect is capable of cure. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.) Plaintiff's opposition to demurrer does not meaningfully address the identified deficiencies or demonstrate how they might be cured by amendment. Leave to amend is not appropriate in these circumstances.

Conclusion. Demurring Defendants' demurrer is sustained without leave to amend.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002